

1 TOOL. COMPANIES AND CORPORATIONS DO THAT. SO IT'S JUST MORE
2 OF A SERVICE THAT A SERVICE PROVIDER FOR A COMPANY SETS UP.
3 INTERNET SERVICE PROVIDERS ARE ANOTHER EXAMPLE OF ENTITIES THAT
4 SET UP IRC SERVERS. WE JUST DO IT AS A SERVICE TO THEIR
5 CLIENTS. IT'S ANOTHER FEATURE THAT THEY CAN USE THE INTERNET
6 FOR BESIDES SURFING THE WEB AND E-MAIL. THEY TRY TO LET THEIR
7 CLIENTS DO MORE THINGS ON THE INTERNET.

8 Q. OKAY. NOW, YOU TALKED ABOUT THEY CAN SET UP IT AS A
9 SERVICE. HOW IS IT THAT THESE IRC SERVICES ARE SET UP?

10 A. IT'S NOT ANYMORE COMPLICATED THAN TAKING A STANDARD GARDEN
11 TYPE PC COMPUTER AND INSTALLING APPROPRIATE SOFTWARE. THERE'S
12 MANY DIFFERENT FLAVORS OF SOFTWARE THAT RUN ON ALL DIFFERENT
13 OPERATING SYSTEMS. YOU JUST CONFIGURE THE SOFTWARE THE WAY
14 THAT YOU WANT IT SET UP. YOU CAN FIGURE WHAT PARAMETERS YOU
15 WANT AND HOW MANY CHANNELS -- HOW MANY CHANNELS YOU WANT. IF
16 YOU WANT TO BE A STAND ALONE SERVER, YOU CAN CONFIGURE THAT OR
17 IF YOU WANT TO JOIN SOMEBODY'S SERVER AND SHARE A COMMON LIST
18 OF CHANNELS, YOU HAVE THAT ABILITY FOR SETTING THAT KIND OF
19 CONFIGURATION PARAMETER UP.

20 AND THERE'S SOME POPULAR NETWORKS THAT EXIST RIGHT
21 NOW. EFNET, DIALNET, THE UNDERNET, CHATNET. THOSE ARE
22 VERY LARGE GROUPS OF SERVERS THAT ARE SCATTERED AROUND THE
23 WORLD. THEY DON'T EXIST IN ANY ONE PLACE. THE UNDERNET,
24 FOR EXAMPLE, THERE'S HUNDREDS OF SERVERS SCATTERED
25 THROUGHOUT THE WORLD. AND THEY ARE KIND OF BROKEN DOWN

1 GEOGRAPHICALLY BY LOCATION. SO IF I WANTED TO GET ON THE
2 UNDERNET, I WOULD PROBABLY CHOOSE AN UNDERNET SERVER THAT
3 WAS GEOGRAPHICALLY CLOSE TO ME IN WASHINGTON DC. AND ONCE
4 I CONNECT TO THAT GEOGRAPHICALLY CLOSE SERVER, I CAN SEE
5 ALL OF THE MESSAGES THAT THAT UNDERNET SERVER HAS AROUND
6 THE WORLD. SO I CAN CHAT WITH OTHER PEOPLE ALL AROUND THE
7 WORLD.

8 Q. AND WHEN THEY TALK ABOUT THESE NETS, FOR EXAMPLE,
9 UNDERNET, IT'S JUST A NETWORK OF COMPUTERS?

10 A. CORRECT. IT'S JUST A NETWORK OF IRC SERVERS. THAT'S KIND
11 OF WHAT DEFINES A NETWORK. ANOTHER THING THAT DEFINES THE
12 NETWORK IS THE NUMBER OF SERVERS THAT ARE ATTACHED TO IT AND
13 WHAT MAKES -- WHAT DIFFERENTIATES DIALNET FROM UNDERNET, WHAT
14 MAKES THEM UNIQUE IS THE LIST OF CHANNELS THEY HAVE. THAT'S
15 ~~KIND OF WHAT MAKES THEM UNIQUE. THAT'S HOW THEY DIFFERENTIATE~~
16 THEMSELVES.

17 Q. IF YOU ARE ON, SAY, UNDERNET YOU CAN TALK WITH OTHER
18 INDIVIDUALS WHO ARE ON UNDERNET IN YOUR CHANNEL?

19 A. CORRECT.

20 Q. BUT YOU COULD NOT -- IF YOU ARE ON UNDERNET YOU COULD NOT
21 ACCESS DIALNET WITHOUT TAKING ADDITIONAL STEPS?

22 A. CORRECT.

23 Q. LET TALK ABOUT THE SOFTWARE THAT'S REQUIRED IN ORDER TO
24 ACCESS AN IRC NETWORK. WHAT IS INVOLVED?

25 A. ON YOUR CLIENT'S SIDE COMPUTER, IF YOU WANT TO USE YOUR

1 MACHINE TO GET OUT OF THE IRC YOU HAVE TO HAVE A CONNECTION TO
2 THE INTERNET, OF COURSE. AND THEN YOU'RE JUST GOING TO INSTALL
3 IRC SOFTWARE. IRC IS NOT PART OF A WEB BROWSER. IT'S NOT PART
4 OF AN E-MAIL SYSTEM. IT'S A SEPARATE COMPONENT, A SEPARATE
5 PROGRAM THAT YOU INSTALL. AND THERE'S TWO POPULAR ONES OUT
6 THERE RIGHT NOW. THE FIRST ONE IS CALLED MIRC, M-I-R-C, AND
7 THE OTHER ONE IS CALLED PIRCH. THOSE ARE JUST TWO OF THE MORE
8 POPULAR ONES. I'M SURE THERE'S DOZENS OF OTHERS, BUT THOSE
9 SEEM TO BE VERY POPULAR. THERE'S OTHER SOFTWARE PACKAGES THAT
10 EXISTS FOR MACKINTOSH COMPUTERS, LINUX MACHINES, AND OTHER
11 TYPES OF SYSTEMS THAT ARE OUT THERE, BUT MIRC AND PIRCH ARE
12 PROBABLY THE MOST POPULAR.

13 Q. AND HOW DO YOU GET MIRC SOFTWARE? DOES IT COME WITH YOUR
14 WINDOWS 98 SOFTWARE?

15 ~~A. NO, IT DOESN'T. IT'S REALLY AVAILABLE THROUGH WEB SITES.~~
16 THE AUTHOR ALLOWS IT TO BE DOWNLOADED FREELY.

17 Q. SO WHAT WOULD A PERSON HAVE TO DO TO GET THE MIRC SOFTWARE?

18 A. YOU WOULD PROBABLY JUST USE YOUR WEB BROWSER TO GO TO
19 WWW.MIRC.ORG AND DOWNLOAD THE SOFTWARE DIRECTLY FROM THE
20 COMPUTER.

21 Q. AND ONCE IT'S ON YOUR COMPUTER CAN YOU THEN ACCESS IRC
22 CHANNELS?

23 A. YOU HAVE TO INSTALL IT. THE NEXT STEP AFTER YOU DOWNLOAD
24 IT IS YOU HAVE TO RUN THE INSTALL PROGRAM WHICH INSTALLS THE
25 SOFTWARE ON YOUR COMPUTER. AND ONCE IT'S INSTALLED, YOU RUN

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1 THE COMPUTER AND THEN YOU'RE OFF TO THE RACES. YOU CAN GET ON
2 IRC, AND YOU CAN START USING.

3 Q. HOW IT, THAT YOU USE IRC?

4 A. EXCUSE ME?

5 Q. HOW IS IRC USED?

6 A. IRC -- BASICALLY THE CONCEPT WITH IRC IS YOU'RE
7 IDENTIFIED BY A NICKNAME. IT DOESN'T HAVE TO BE YOUR REAL
8 NAME. IT'S USER CONFIGURABLE. THERE'S NO CENTRAL GOVERNING
9 AUTHORITY ON WHICH NICKNAME YOU USE. PEOPLE CAN HAVE DIFFERENT
10 NICKNAMES. THAT'S HOW YOU'RE IDENTIFIED IN THE CHANNELS. AND
11 THE CHAT ROOMS ARE BY THE NAME THAT YOU CHOOSE. SO THAT'S THE
12 FIRST STEP, YOU CONFIGURE YOUR IDENTITY. AND THE SECOND STEP
13 IS YOU WANT TO CONFIGURE WHICH SERVER YOU WANT TO CONNECT TO.
14 AND THEN ONCE YOU CONNECT TO THE SERVER, YOU CAN SEE A LIST OF
15 THE CHANNELS THAT ARE AVAILABLE, JOIN ONE OF THOSE CHANNELS,
16 AND THEN OBSERVE THE MESSAGES THAT ARE GOING ON.

17 AND LATER ON IF YOU WERE OBSERVING A CONVERSATION, YOU
18 COULD BE HAVING CONVERSATIONS IN THIS ROOM IF YOU WANTED TO
19 SPLIT OFF WITH ONE INDIVIDUAL. IT DOES PROVIDE THE ABILITY TO
20 HAVE A ONE TO ONE DISCUSSION.

21 Q. AND THAT ONE-TO-ONE DISCUSSION, WAS THE DCC, THE DIRECT
22 CLIENT CONNECTION, THAT WE WERE TALKING ABOUT EARLIER?

23 A. CORRECT.

24 Q. ONCE YOU ARE IN A CHANNEL YOU SEE THE OTHER INDIVIDUALS WHO
25 ARE THERE, AND YOU CAN TALK TO ANY OF THEM; IS THAT RIGHT?

1 A. THAT'S CORRECT.

2 Q. DID YOU PREPARE SEVERAL SLIDES SHOWING HOW USING MIRC
3 SOFTWARE --, HOW YOU ACCESS AN IRC CHAT ROOM?

4 A. YES, I DID.

5 Q. LET ME SHOW YOU THIS FIRST SLIDE. AND IF COULD YOU TELL
6 US WHAT THIS IS.

7 A. THIS IS THE -- THIS IS THE FIRST SCREEN THAT YOU'LL SEE
8 AFTER YOU CLICK ON THE IRC ICON ON YOUR TOOL BAR OR WHEREVER
9 YOU HAVE THE PROGRAM INSTALLED, YOU GET A LITTLE WINDOW
10 OPENING UP SHOWING YOU WHO THE AUTHOR IS. KHALED MARDAM,
11 HE'S A PRETTY SHARP PROGRAMMER. HE'S THE ONE THAT WROTE
12 THIS MIRC SOFTWARE, AND JUST BASICALLY SERVES THAT
13 INFORMATION.

14 Q. AND THEN WHAT WOULD YOU DO?

15 ~~A. YOU WOULD CLOSE THIS WINDOW. AND BASICALLY -- MY SOFTWARE~~
16 IS CONFIGURED AUTOMATICALLY TO BRING UP WHAT'S THIS CONNECT
17 DIALOG OR THIS SETUP DIALOGUE WHERE YOU'RE GOING TO SET UP
18 DIFFERENT ATTRIBUTES ABOUT YOUR CONNECTION, WHICH SERVER YOU
19 WANT TO CONNECT TO, WHAT YOUR LOCAL INFORMATION IS, ANY OTHER
20 CONFIGURATION OPTIONS THAT ARE AVAILABLE. AND ON THE BOTTOM
21 PART OF THE SCREEN IT TALKS ABOUT WHAT NAME YOU WANT TO USE.
22 THIS IS ALL USER PROGRAMMABLE STUFF. IT'S NOT NECESSARILY
23 AUTHENTIC OR REAL. IT'S WHATEVER THE USER HAPPENS TO TYPE IN.
24 SO AS AN EXAMPLE, I TYPED IN THE NAME JOHN Q. PUBLIC. I MADE
25 UP A FAKE E-MAIL ADDRESS, AND I USED THE NICKNAME OF J.Q.

1 Q. AND THAT'S ALL INFORMATION THAT THE USER CAN PUT IN?

2 A. THAT'S CORRECT. AND THIS IS WHERE THE USER PUTS THAT
3 INFORMATION, CORRECT.

4 Q. AND IT CAN BE TRUE OR FALSE?

5 A. YES.

6 Q. LET'S TALK INITIALLY UP AT THE TOP WHERE IT SAYS,
7 "RANDOM U.S. UNDERNET SERVER." WHAT IS THAT?

8 A. BASICALLY THAT IS -- SINCE THERE'S SO MANY UNDERNET SERVERS
9 AROUND, YOU CAN INSTEAD OF SELECTING A PARTICULAR ONE, YOU
10 COULD HAVE THE SOFTWARE JUST GO PICK ONE RANDOMLY FOR YOU AND
11 THEN TRY TO PICK ONE THAT'S NOT BEING HEAVILY USED AT THE
12 MOMENT, SO YOU'LL KIND OF GET BETTER PERFORMANCE. IT WILL JUST
13 RANDOMLY CHOOSE A SERVER FOR YOU IN HOPES OF GETTING A HIGHER
14 QUALITY CONNECTION.

15 Q. LET ME SHOW YOU THIS SLIDE. AND WHAT IS THIS?

16 A. THIS IS A WINDOW OF WHAT YOU WILL SEE IF YOU CLICK ON THAT
17 LITTLE DOWN ARROW GADGET TO THE RIGHT WHERE IT SAYS, "RANDOM
18 U.S. UNDERNET SERVER." IT ACTUALLY SHOWS YOU A LIST OF ALL OF
19 THE SERVERS THAT YOU CAN CONNECT TO ON THE UNDERNET IN THIS
20 EXAMPLE. AND THE REASON TO DISPLAY THIS IS BECAUSE IT SHOWS
21 THE GEOGRAPHIC LOCATIONS. THERE'S UNDERNET SERVERS LOCATED IN
22 BLACKSBURG, VIRGINIA; CHICAGO, ILLINOIS; DALLAS, TEXAS;
23 THERE'S LONDON IN THE U.K; LOWELL, MASS. IT JUST BASICALLY
24 SHOWS THE INTERNATIONAL NATURE AND THE GEOGRAPHICAL DIVERSITY
25 OF WHERE THESE SERVERS ARE LOCATED.

1 Q. ON THIS -- IN THIS PART OF THE MIRC PROGRAM, CAN YOU
2 SCROLL UP AND DOWN TO FIND ACCESS TO DIFFERENT TYPES OF NETS,
3 SAY, EFNET?

4 A. ABSOLUTELY, CORRECT. IF YOU LOOK AT THE SCROLL BAR, I'M
5 KIND OF TOWARDS THE BOTTOM OF THE LIST, BUT FURTHER TOWARDS THE
6 -- IT'S SORTING IT IN ALPHABETICAL ORDER -- TOWARDS THE TOP OF
7 THE LIST THERE'S GOING TO BE NAMED FOR EFNET FOR DALNET, FOR
8 CHATNET, AND HUNDREDS OF OTHER SERVERS THAT ARE AVAILABLE FOR
9 ME TO CONNECT.

10 Q. SO BY SCROLLING UP AND DOWN HERE, YOU COULD CHOOSE ANY NET
11 THAT YOU WANTED TO ACCESS?

12 A. CORRECT.

13 Q. AND HOW DO YOU CHOOSE ONE?

14 A. YOU JUST HIGHLIGHT ONE. YOU MOVE YOUR MOUSE ON TOP OF ONE
15 OF THEM, HIGHLIGHT IT, AND THEN LET GO.

16 Q. WHEN IT GETS BACK TO -- WHEN IT GETS BACK TO THIS SCREEN,
17 UP HERE YOU WOULD HAVE NOW CHOSEN WHICH SERVER YOU WANTED TO
18 ACCESS?

19 A. CORRECT.

20 Q. NOW WHAT DO YOU DO?

21 A. YOU WOULD ACTUALLY JUST PUSH THE OKAY BUTTON RIGHT NOW TO
22 ACTUALLY JOIN THAT CONNECTION. TO BE CONNECTED TO THE IRC
23 SERVER THE BUTTON WOULD ACTUALLY PERFORM THE CONNECTION FOR
24 YOU.

25 Q. AND IS THIS WHAT YOU WOULD SEE WHEN YOU -- AFTER YOU

1 CONNECT?

2 A. CORRECT.

3 Q. WHAT IS THAT?

4 A. TOWARDS THE TOP IT BASICALLY TELLS ME WHICH SERVER I'M
5 CONNECTING TO. I'M CONNECTING TO ATLANTA, GEORGIA, ON THE U.S.
6 UNDERNET ORGANIZATION. AND IT SHOWS ME IN PARENTHESIS WHAT
7 PORT I'M CONNECTING TO -- 6669. IT SHOWS ME MY MACHINE NAME
8 DELL 001, AND MY IP ADDRESS. THAT'S MY REAL IP ADDRESS ON THE
9 INTERNET. THEN I'M GETTING A WELCOME MESSAGE -- WELCOME TO
10 THE INTERNET RELAY NETWORK J.Q., BECAUSE THAT WAS MY NICKNAME
11 J.Q. I'M YOUR HOST. YOU'RE CONNECTED THROUGH ATLANTA,
12 GEORGIA. YOU GET SOME MORE MESSAGES. THIS SERVER WAS CREATED
13 ON JULY 13TH, '99. THAT'S HOW LONG THIS PARTICULAR SERVER WAS
14 UP AND RUNNING. AND IT GIVES ME SOME OTHER INFORMATION.

15 ~~FURTHER DOWN IT SHOWS ME HOW MANY USERS WERE ONLINE.~~
16 SO THERE'S 18,000 USERS ONLINE, 20,000 INVISIBLE USERS. THAT'S
17 KIND OF CONFUSING, BUT IT REALLY SHOULDN'T BE CONFUSING.
18 THERE'S A CHECK BOX ON THE PREVIOUS SCREEN WHERE YOU CAN
19 DECIDE FOR YOURSELF WHETHER YOU WANT TO BE INVISIBLE WHEN YOU
20 GO INTO THESE CHAT ROOMS, SO THAT PEOPLE DON'T BOTHER YOU, AND
21 THEY DON'T HARRASS YOU AND SEND YOU THESE MESSAGES.

22 Q. WHAT DOES "INVISIBLE" MEAN?

23 A. IT MEANS THAT PEOPLE CAN'T SEND YOU MESSAGES WITHOUT YOU
24 AUTHORIZING THEM TO SEND YOU MESSAGES. IT'S JUST A WAY OF
25 MASKING YOUR PRESENCE IN A ROOM.

1 Q. DOES YOUR NAME SHOW UP AS SOMEONE WHO'S IN THE CHANNEL?

2 A. NO. SO THE OTHER INFORMATION THAT IT SHOWS ME IS THERE'S
3 SOMETHING CALLED -- IT'S CALLED IRC OPS. HOW MANY OPERATORS
4 ARE ONLINE. THERE'S 40. HOW MANY CONNECTIONS THAT ARE
5 UNKNOWN. HOW MANY CHANNELS EXIST. THERE'S 15,603 CHANNELS OR
6 CHAT ROOMS THAT ARE AVAILABLE FOR ME TO CHOOSE FROM AT THIS
7 POINT IN TIME.

8 AND "CLIENTS" MEANS HOW MANY CLIENTS. IT'S KIND OF A
9 MISLEADING NAME. IT REALLY MEANS IRC SERVERS. IT MEANS
10 THERE'S 2,000 IRC SERVERS AROUND THE WORLD THAT ARE PROBABLY
11 GETTING THIS INFORMATION.

12 Q. AND WHEN YOU TALKED ABOUT UP HERE, THIS IP ADDRESS, THAT
13 WAS AN ACCURATE IP ADDRESS?

14 A. YES. THAT'S MY ACCURATE IP ADDRESS THAT'S IN MY OFFICE.

15 Q. ~~SO WAS IT THE COMPUTER THAT YOU WERE USING WHEN YOU~~
16 ~~ACCESSED THE INTERNET THIS TIME?~~

17 A. CORRECT.

18 Q. HOW DID THE IRC GET THAT IP ADDRESS?

19 A. IT JUST BASICALLY LOOKED UP MY IP ADDRESS ON MY NETWORK
20 CONNECTION AND USED THAT INFORMATION.

21 Q. FROM YOUR COMPUTER?

22 A. CORRECT.

23 Q. SO EVEN THOUGH YOU ENTERED FALSE INFORMATION ON THE SIGN-IN
24 SCREEN, YOUR IP ADDRESS IS ACCURATE?

25 A. THAT'S CORRECT.

1 Q. WHAT DO YOU DO AFTER YOU GET THIS INITIAL SCREEN?

2 A. SO NOW I'M CONNECTED TO THE IRC. THAT'S GREAT AND DANDY.
3 THE NEXT THING YOU WANT TO DO IS BASICALLY GENERATE A LIST OF
4 CHANNELS TO SEE WHAT CHANNELS THAT I CAN ACCESS.

5 Q. IS THERE A BUTTON SOMEWHERE THAT YOU PRESS TO ACCESS A
6 CHANNEL OPTION?

7 A. SURE. ON THE TOP OF THE SCREEN THERE'S KIND OF LIKE A TOOL
8 BAR MENU. AND ONE OF THE OPTION ON THE TOOL BAR IS "LIST
9 CHANNELS" WHERE YOU CAN -- BRINGS UP THIS LITTLE DIALOGUE BOX
10 WHERE YOU CAN PULL UP A LIST OF CHANNELS THAT ARE AVAILABLE.
11 SO YOU JUST PULL UP THIS LITTLE WINDOW, AND I JUST CLICKED ON
12 THE "GET LIST" BUTTON, AND IT'S GOING TO GO OUT TO THE SERVER
13 AND GENERATE A LIST OF CHANNELS AND THEN DISPLAY THEM FOR ME.
14 Q. AND WHEN YOU DID IT IN THIS CASE, IS THIS THE BEGINNING OF
15 WHAT YOU SAW?

16 A. YES, IT IS. AND YOU SEE ON THE TOP LINE BASICALLY SAYS
17 12,536 VISIBLE CHANNELS WITH A TOTAL OF 12,649 CHANNELS. WHAT
18 THAT MEANS IS 12,536, THAT'S HOW MANY NAME CHANNELS THERE ARE,
19 BUT THERE'S A TOTAL OF 12,649. THERE'S A DISCREPANCY THERE OF
20 ABOUT A HUNDRED. SO THERE'S A HUNDRED CHANNELS ON THIS
21 UNDERNET SERVER THAT DON'T HAVE A VISIBLE NAME. SO THEY'RE
22 KIND OF LIKE HIDDEN CHANNELS. THE ONLY WAY I CAN ACCESS THOSE
23 CHANNELS -- I CAN'T SELECT THEM FROM THIS LIST RIGHT NOW
24 BECAUSE THEY ARE NOT ON THIS LIST. THE ONLY WAY I CAN ACCESS
25 THOSE HIDDEN CHANNELS IS IF I KNEW TO TYPE THAT NAME.

1 Q. SO YOU WOULD HAVE TO ACTUALLY KNOW THE NAME OF THOSE HIDDEN
2 CHANNELS?

3 A. CORRECT.

4 Q. HOW WOULD YOU KNOW WHERE A HIDDEN CHANNEL -- WHICH SERVER A
5 HIDDEN CHANNEL WAS ON?

6 A. YOU HAVE TO KNOW THAT INFORMATION FROM ANOTHER SOURCE.

7 Q. THERE'S NO DIRECTORY THAT GIVES THAT TO YOU?

8 A. RIGHT. I CAN'T LIST THE HIDDEN CHANNELS.

9 Q. SO THIS LISTING OF CHANNELS THAT WE SEE THE BEGINNING OF,
10 THESE ARE PUBLIC CHANNELS; IS THAT CORRECT?

11 A. CORRECT. THESE ARE LIKE PUBLIC CHANNELS. AND YOU'LL SEE
12 ON THIS LIST OF THEM CHANNEL NAMES BEGIN WITH A POUND SIGN.
13 AND PEOPLE CAN NAME -- YOU CAN NAME THE CHANNEL WHATEVER YOU
14 WANT, HOWEVER MANY CHARACTERS ARE AVAILABLE THERE.

15 ~~AND PEOPLE WHO BUILD THESE CHANNELS KIND OF BUILD THEM~~
16 WITH NAMES SO THEY'LL SORT TO THE TOP OF THE LIST. SO YOU'LL
17 SEE THINGS LIKE WHERE THEY HAVE ZEROS AND EXCLAMATION MARKS,
18 BECAUSE ZEROS AND EXCLAMATION MARKS SORT TO THE TOP OF THE
19 LIST. SO THAT'S THE FIRST FIELD.

20 THE MAIN FIELD IS THE NAME OF THE CHANNEL AND THE LAST
21 NUMBERS -- THESE ARE ONES, FOURS, AND THE NUMBER ARE THE NUMBER
22 OF PEOPLE THAT ARE IN THAT CHANNEL. SO, FOR EXAMPLE, THERE'S A
23 CHANNEL CALLED YOUNG GIRL SEX, AND THERE'S A NUMBER 35
24 ASSOCIATED WITH IT. THAT MEANS THERE'S 35 PEOPLE IN THAT
25 CHANNEL RIGHT NOW.

1 Q. AND, AGAIN, THERE'S -- NOW, HOW WOULD YOU ACCESS ONE OF
2 THESE CHANNELS IF YOU DECIDED THAT WAS SOMETHING YOU WANTED TO
3 DO?

4 A. THIS IS A LITTLE OF A SCROLLING WINDOW. I COULD MOVE MY
5 CURSOR OR SCROLL MY MOUSE ON TOP OF ONE OF THE CHANNEL NAMES,
6 AND DOUBLE CLICK ON THE CHANNEL NAME, AND IT ENTERS THE
7 CHANNEL.

8 SO IN THIS EXAMPLE I HIGHLIGHTED CHANNEL CALLED "A HUNDRED
9 PERCENT PRETEEN GIRL SEX PICS." IT SAYS THAT THERE WAS 20
10 PEOPLE IN THE CHANNEL, SO I HIGHLIGHTED IT, HIT THE ENTER KEY,
11 AND IT WILL JOIN THAT CHANNEL.

12 Q. OKAY. I KNOW THIS IS DIFFICULT TO READ, BUT WHILE IT'S OUT
13 LIKE THIS, IF YOU COULD DESCRIBE IN GENERAL WHAT'S ON THE
14 SCREEN HERE WHEN YOU ACCESS IT. HAVE YOU NOW -- DOES THIS
15 ~~SCREEN SHOW THAT YOU HAVE NOW ACCESSED THE CHANNEL CALLED~~
16 POUND, A HUNDRED PERCENT, PRETEEN GIRLS, SEX PICS?

17 A. CORRECT. BASICALLY THE MAIN WINDOW THAT'S PRETTY MUCH
18 BLANK RIGHT NOW, THAT'S THE MAIN CHANNEL WINDOW. THAT'S WHERE
19 ALL THE COMMON MESSAGES GET STORED. ALL OF THE MESSAGES THAT
20 ARE AVAILABLE -- ALL OF THE MESSAGES THAT -- ON THE
21 RIGHT-HAND SIDE THERE'S A LIST OF USER NAMES, AND THOSE ARE THE
22 LIST OF THE NICKNAMES OF THE PEOPLE THAT ARE ON THE CHANNEL AT
23 THIS POINT IN TIME. YOU'LL NOTICE THAT MY NAME IS ON THAT LIST
24 BECAUSE I'M IN THIS CHANNEL. MY NAME IS J.Q. SO I'M JUST ONE
25 OF THE MEMBERS THAT'S IN THIS CHANNEL RIGHT NOW. AND IF I

1 COUNTED THEM ALL UP, THERE WOULD BE 20. BECAUSE THAT'S WHAT I
2 SAID WHEN I JOINED THIS CHANNEL. SO THESE ARE THE PEOPLE
3 THAT -- THESE ARE THE PEOPLE THAT ARE TALKING RIGHT NOW.
4 THESE ARE THE PEOPLE THAT ARE CHATTING. IF YOU LOOK AT THE
5 REST OF THE WINDOW YOU COULD KIND OF SEE THE MESSAGES THAT ARE
6 BEING SCROLLED BY.

7 Q. AND THIS -- WHAT DOES THAT TELL US?

8 A. ON THE LAST LINE, IN OTHER WORDS, IT'S LIKE TRIPLE
9 ASTERISKS LINES, THOSE ARE SYSTEM MESSAGES. AND THAT BASICALLY
10 GOING TO TELL ME A MESSAGE. AND SO THE LINES THAT BEGINNING
11 WITH THREE ASTERISKS ARE SYSTEMS MESSAGES. SO IT TELLS ME THE
12 NICKNAME TRIPO2, AND THEN IN PARENTHESES THERE'S AN IP ADDRESS
13 OR INFORMATION ANYWAY. AND THEN THE REST OF THE MESSAGES HAVE
14 JOINED THE CHANNEL. AND YOU'LL SEE MESSAGES WHEN INDIVIDUALS
15 ~~HAVE JOINED THE CHANNEL AND INDIVIDUALS LEAVE THE CHANNEL THAT~~
16 THOSE MESSAGES ARE BEING WOUND ON.

17 Q. OKAY. AND WHERE THIS SAYS -- THIS TRIPO2, THAT'S
18 INFORMATION THAT THE USER HAS ENTERED SUCH AS YOUR J.C. OR
19 J.Q.; IS THAT RIGHT?

20 A. CORRECT. THAT'S THE INDIVIDUAL THAT THE NAME IS GOING BY.
21 THAT'S THE NAME THAT HE'S GOING BY.

22 Q. AND THIS IQA, --

23 A. IQA.

24 Q. -- WHATEVER THAT IS, WHAT'S THAT?

25 A. THAT'S THE USER NAME THAT THEY ASSIGNED THEMSELVES. THAT'S

1 USER CONFIGURABLE AS WELL. THAT'S JUST WHATEVER USER NAME YOU
2 WANT TO FILL IN. AND THERE'S AN @ SIGN. TO THE RIGHT OF THE @
3 SIGN UP UNTIL WHERE THE CLOSING PARENTHESIS IS IS THE IP
4 ADDRESS OR THE LOCATION FOR WHERE THAT INDIVIDUAL IS LOCATED.
5 AND THAT'S KIND OF REAL. THAT'S USED BY THE COMPUTER. THAT'S
6 HOW THE COMPUTER IS ABLE TO SEND MESSAGES. AND THAT'S THE
7 COMPUTER THAT IT SENDS THE MESSAGES TO, AND IT TELLS ME THAT
8 THIS COMPUTER IS LOCATED AT -- .FRDN INDICATES FRANCE, THE
9 COUNTRY CODE FOR FRANCE. SO SOMEBODY FROM FRANCE HAS JUST
10 JOINED THIS CHANNEL.

11 Q. NOW, THIS WAS THE NEXT SCREEN THAT YOU SAW. AND IF YOU
12 COULD DESCRIBE FOR US WHAT THIS IS.

13 A. THERE IS SOME BASIC COMMAND THAT YOU CAN DO ONCE YOU ARE IN
14 A CHANNEL. AND ONE OF THE COMMANDS THAT I WANTED TO
15 ~~DEMONSTRATE IS THE WHO-IS COMMAND. IF I DO A WHO-IS ON A~~
16 NICKNAME -- ON MY NAME J.Q., THIS IS THE INFORMATION THAT GETS
17 RETURNED. THAT'S THE INFORMATION THAT'S STORED ABOUT ME. AND
18 THE NUMBER IN PARENTHESIS, THERE'S THE USER NAME THAT I DECIDED
19 TO USE, COLON, AND THE @ SIGN, TO THE RIGHT OF THE AT SIGN IS
20 THE IP ADDRESS OF MY MACHINE.

21 THEN THE OTHER USEFUL INFORMATION THAT I FILLED IN
22 BACK ON MY SETUP SCREEN WHERE I CHOSE THE NAME JOHN Q. PUBLIC,
23 IT'S LISTING WHICH CHANNEL OR CHANNELS THAT I'M CURRENTLY IN
24 RIGHT NOW. IN IRC IT'S POSSIBLE TO BE IN MULTIPLE CHANNELS,
25 AND I DON'T HAVE TO BE TALKING IN JUST ONE CHANNEL. THE

1 ABILITY EXISTS FOR ME TO SIMULTANEOUSLY MONITOR CONVERSATIONS
2 IN TWO, THREE, FOUR CHANNELS, HOWEVER MUCH YOUR BRAIN CAN
3 PROCESS. YOU CAN BE WATCHING MULTIPLE WINDOWS AT THE SAME
4 TIME.

5 Q. FOR EXAMPLE, DOES THE INDIVIDUAL ABOVE YOU, DOES IT LIST
6 THAT HE IS IN SEVERAL CHAT ROOMS?

7 A. GOOD POINT. THERE'S A PERSON ABOVE THERE THAT GOES BY THE
8 NAME BOB-BOB. AND IT JUST SHOWS ME WHAT CHANNELS HE'S IN RIGHT
9 NOW. SO IT JUST LISTS OUT COLLEGE GIRLS, SEX PICS, YOUNG GIRL
10 SEX -- ALL THE DIFFERENT CHANNELS THAT HE'S SIMULTANEOUSLY IN.

11 Q. GOING BACK DOWN HERE TO THE INFORMATION PROVIDED BY YOU,
12 THE J.Q. AND THE COLON WAS INFORMATION THAT YOU PUT IN?

13 A. YES, IT IS.

14 Q. AND THE INFORMATION AFTER THE @ SIGN IS YOUR ACCURATE IP
15 ADDRESS?

16 A. CORRECT. AND THE LAST TWO THINGS ARE THE SERVER NAMES. SO
17 I CAN GET TO THE UNDERNET IF I WANT TO GET TO GEORGIA, WHICH
18 MAKES SENSE WITH ME SO THAT I WOULD BE CONNECTED. AND IDLE
19 TIME, I WAS IDLE FOR 294 SECONDS WHILE I WAS PRINTING THIS
20 OUT.

21 Q. LET ME SHOW YOU THIS NEXT DOCUMENT. AND LOOKING AT IT
22 INITIALLY LIKE THIS WHERE NO ONE CAN READ IT, IN GENERAL WHAT
23 IS IT THAT YOU ARE SEEING HERE?

24 A. THIS IS ACTUALLY AFTER TIME GOES BY. YOU JUST GO INTO THIS
25 CHAT ROOM AND JUST WATCH MESSAGES GO BY. I'M NOT DOING ANY

1 TYPING. I'M JUST WATCHING PEOPLE CHATTING IN THIS ROOM. YOU
2 CAN KIND OF SEE WHAT'S GOING ON, AND YOU CAN SEE JUST GENERALLY
3 SPEAKING THAT THERE'S DIFFERENT, LIKE DIFFERENT ATTRIBUTES.
4 PEOPLE ARE USING BOLD. PEOPLE ARE DOING DIFFERENT COLORS. IT
5 DOESN'T REALLY SHOW UP IN BLACK AND WHITE, BUT THAT'S WHAT SOME
6 OF THESE DIFFERENT SHADES INDICATE, IS THAT PEOPLE ARE USING
7 THEIR COMPUTERS TO TYPE MESSAGES WITH DIFFERENT ATTRIBUTES.
8 DIFFERENT COLORS, UNDERLINING, AND DIFFERENT TEXTUAL
9 ATTRIBUTES.

10 Q. WHEN AN IRC CHAT IS LOGGED OR RECORDED, WHAT IS IT THAT YOU
11 SEE?

12 A. YOU'LL SEE THIS STUFF THAT'S IN THIS MAIN WINDOW. THIS IS
13 EXACTLY THE INFORMATION THAT GETS SAVED IN THE LOG FILE,
14 CORRECT.

15 ~~Q. DO YOU GET THIS INFORMATION OVER HERE?~~

16 A. NO, YOU DON'T. YOU DON'T GET THE LIST OF USER NAMES.

17 Q. AND WHEN IT IS SAVED IN A LOG, IS IT SAVED IN BOLD TYPE
18 COLORS, THAT SORT OF THING?

19 A. NO.

20 Q. WHAT DO YOU SEE INSTEAD?

21 A. JUST THE TEXT. YOU DON'T SEE ANY OF THE FANCY COLORS.
22 YOU DON'T SEE THE BOLD. YOU DON'T SEE ALL THAT KIND OF STUFF.
23 YOU JUST SEE PLAIN TEXT.

24 Q. IF SOMETHING WERE IN BOLD ON THE SCREEN AND THEN YOU RECORD
25 IT, ARE THERE DIFFERENT TYPES OF NOTATIONS AROUND THE WORDS TO

1 SHOW WHAT HAS BEEN BOLDED?

2 A. YES. BASICALLY HOW THEY DO THESE BOLDINGS, THEY DO THESE
3 SPECIAL ATTRIBUTES. THEY'RE CALLED IS-BY EMBEDDING CONTROL
4 CODES IN YOUR DOCUMENT. THERE'S CONTROL CODES. THERE'S
5 CONTROL CHARACTERS THAT TURNS ON BOLD AND THEN TURN OFF BOLD.
6 THERE'S A CONTROL CODE TO TURNS ON THE COLOR RED AND ANOTHER
7 CONTROL CHARACTER THAT TURNS OFF THE COLOR RED. SO YOU'LL
8 ACTUALLY SEE SPACES IN YOUR LOG FILES. AND YOU'LL SEE NUMBERS
9 EMBEDDED IN YOUR DOCUMENT THAT DON'T KIND OF MAKE SENSE, BUT
10 WHAT WE KIND OF DEDUCE FROM THAT IS THAT THEY'RE USING SPECIAL
11 ATTRIBUTES THAT ARE DISPLAYED IN AN ALTERNATE FILE.

12 Q. LET'S GO UP ON -- DESCRIBE FOR US IN GENERAL WHAT'S
13 HAPPENING HERE.

14 A. WHAT YOU'LL SEE ON ALL OF THESE LINE IS IN THE FIRST FIELD,
15 ~~WHAT'S STORED IN THE ANGLE BRACKETS, IS THE PERSON'S NICKNAME.~~
16 SO, FOR EXAMPLE, ON THE THIRD OR FOURTH LINE STATIKSRU OR
17 WHATEVER THAT NAME IS, THAT'S A NICKNAME. THAT IS A MESSAGE
18 THAT HE'S DISPLAYING. SO WHAT'S HE DOING? IS HE TALKING ABOUT
19 THE WEATHER? IS HE TALKING ABOUT WHAT'S GOING ON? NO. HE'S
20 PLACING AN ADVERTISEMENT SAYING, HEY, I'M ADVERTISING MY FILE
21 SERVER. IF YOU WANT TO CONNECT TO MY FILE SERVER, TYPE THE
22 NAME COMMAND AND EXCLAMATION STATIKSRU. AND THE RATIO IS ONE
23 TO THREE. YOU GIVE ME ONE PICTURE, I GIVE YOU THREE. SO THESE
24 PEOPLE AREN'T REALLY CHATTING ABOUT THE WEATHER. THEY'RE JUST
25 ADVERTISING THE FACT THAT THEY'RE RUNNING A FILE SERVER, AND

1 YOU CAN CONNECT TO THEM ON FILE SERVER AND IT WILL DO SOME
2 TRADING.

3 Q. WHEN YOU ARE TALKING ABOUT A FILE SERVER, IS THAT LIKE AN
4 FTP,

5 A FILE TRANSFER PROTOCOL WHERE PEOPLE CAN GO AND GET FILES OR
6 PICTURES?

7 A. CORRECT.

8 Q. AND THEN WHEN YOU JOIN, DOES IT GIVE YOU THE LIST OF PEOPLE
9 WHO ALSO HAVE JOINED OR ARE JOINING, AND WHETHER THEY'RE
10 LEADING?

11 A. CORRECT. THIS IS ANOTHER SCREEN SHOT EXAMPLE OF SYSTEM
12 MESSAGES. IT HAS THAT THREE ASTERISKS AT THE BEGINNING, AND IT
13 BASICALLY SHOWS ME THE NICKNAME -- IDENTIFYING INFORMATION
14 ABOUT THAT NICKNAME, WHEN THEY JOINED -- WHEN THEY JOINED THE
15 CHANNELS AND WHEN THEY LEAVE THE CHANNELS.

16 Q. NOW, IN THIS CASE THE INDIVIDUALS INVOLVED IN THE CHESHIRE
17 CAT/OPERATION CATHEDRAL, THOSE INDIVIDUALS, DID THEY USE
18 INTERNET RELAY CHAT TO COMMUNICATE?

19 A. YES, THEY DID.

20 Q. DID THEY USE PUBLIC CHANNEL?

21 A. NO, NOT REALLY. THEY HAD A PRIVATE SERVER AND PRIVATE
22 CHANNELS, SO THEY WERE A LEVEL OR GENERATION MORE SOPHISTICATED
23 THAN THESE PUBLIC TRADERS. THESE PEOPLE ARE TRADING IN PLAIN
24 VIEW. THEY ARE BEING VERY OBVIOUS AND BEING VERY BLATANT ABOUT
25 WHAT THEY'RE DOING, SO THAT WAS NOT REALLY SO IN THE CHESHIRE

1 CAT CASE.

2 Q. WHAT TYPE OF CHANNELS OR TELL US ABOUT THE CHANNELS THAT
3 THEY USED IN THE CHESHIRE CAT CASE?

4 A. THE FIRST THING THAT THEY DID WAS THEY HAD THEIR OWN
5 SERVER. THAT'S THE BEST WAY TO BE SECURE IS YOU'RE NOT GOING
6 TO USE SOME PUBLIC SERVER. YOU'RE NOT GOING TO USE SOME
7 INTERNET SERVICE PROVIDER OR SOME UNIVERSITY SERVER.

8 ONE OF THE MEMBERS WENT BY THE NAME OF HARRY MUD, FOR
9 EXAMPLE. ANOTHER INDIVIDUAL GOES BY THE NAME ULTI, THEY HAD
10 THEIR OWN IRC SERVER. THEY RENTED IT FROM -- THEY RENTED
11 ACCESS FROM THE INTERNET SERVICE PROVIDER, HAD ACCESS TO A
12 MACHINE, AND THEY CONFIGURED IT. THAT GIVES YOU COMPLETE
13 CONTROL OVER IT. SO THEY HAD --

14 MR. BRANIFF: YOUR HONOR, I WANT TO OBJECT TO THIS
15 ~~TESTIMONY STATING THESE FACTS WHEN THERE'S NO FOUNDATION FOR~~
16 ~~THEM.~~

17 THE COURT: SUSTAINED.

18 BY MS. MAJOR:

19 Q. HOW DID YOU LEARN THIS INFORMATION?

20 A. BY REVIEWING THE EVIDENCE FROM SEIZED COMPUTERS. THE
21 CONFIGURATION FILES THAT ARE ASSOCIATED WITH IRC -- THE IRC
22 SOFTWARE STORES A LIST OF SERVERS THAT YOU CONNECT TO, AND SO
23 YOU CAN JUST LOOK THROUGH THE CONFIGURATION SETTINGS FOR THE
24 IRC SOFTWARE, AND IT SHOWS THE SERVER NAME THAT YOU CONNECT TO,
25 WHAT CHANNEL NAME YOU CONNECT TO, WHAT'S THE PORT NAME THAT YOU

1 | CONNECT TO, IF THERE'S A PASSWORD OR NOT ASSOCIATED WITH THAT
2 | PORT.

3 | Q. WHAT CHANNELS -- WHAT WERE SOME OF THE NAMES OF THE
4 | CHANNEL OR ROOMS THAT THIS GROUP USED TO TALK IN?

5 | MR. BRANIFF: OBJECTION. FOUNDATION.

6 | THE COURT: OVERRULED. I ASSUME THIS IS BASED ON YOUR
7 | REVIEW OF THE COMPUTERS?

8 | THE WITNESS: YES, IT IS.

9 | THE FEW PRIMARY CHANNEL NAMES WERE CALLED WONDERLAND
10 | AND OURPLACE.

11 | BY MS. MAJOR:

12 | Q. AND THOSE -- WHAT WOULD YOU HAVE TO KNOW? WHAT WOULD A
13 | PERSON HAVE TO KNOW TO ACCESS THOSE CHANNELS?

14 | A. THE FIRST THING IS A LITTLE MISLEADING. IT WAS WONDERLAND
15 | ~~WITH A NONSTANDARD SPELLING. SO THEY DIDN'T SPELL IT~~
16 | WONDERLAND. THEY SPELLED IT -- INSTEAD OF A ZERO THEY CALLED
17 | IT A -- INSTEAD OF AN "O" THEY USED A ZERO. SO THE CORRECT
18 | SPELLING WOULD BE W-0-N-D-E-R-L-A-N-D. SO IT'S KIND OF A
19 | LITTLE TRICK THERE. IT WASN'T REALLY WONDERLAND, IT WAS ZERO
20 | INSTEAD OF AN "O."

21 | BESIDES HAVING THE NAME AND THE SERVER THERE WAS A
22 | PASSWORD ASSOCIATED WITH DIFFERENT ROOMS. SO YOU NOT ONLY
23 | NEEDED TO KNOW WHICH SERVER TO CONNECT TO, YOU NEEDED TO KNOW
24 | WHICH CHANNEL TO CONNECT TO, AND THEN THERE'S A CHANNEL
25 | PASSWORD. AND YOU HAVE TO KNOW WHICH PORT THAT IT'S USING. SO

1 THERE'S A LOT OF BITS OF INFORMATION THAT YOU HAVE TO KNOW.
2 YOU CAN'T RANDOMLY GUESS THESE NAMES. YOU HAVE TO GET ALL
3 THESE THINGS RIGHT TO CONNECT TO THIS SERVER.

4 Q. WAS THE SERVER ALSO CONFIGURED TO RECOGNIZE IF YOU
5 ATTEMPTED TO ENTER WITH THE CORRECT PASSWORD, BUT FROM THE
6 WRONG ISP ADDRESS? WAS IT CONFIGURED TO RECOGNIZE YOU?

7 A. YES, IT WAS.

8 Q. EXPLAIN THAT?

9 A. GOOD POINT. THERE'S A CONCEPT OF BOX OR ROBOTS AND ALL
10 THEY ARE -- THEY'RE LITTLE SCRIPTS. THEY'RE LITTLE PROGRAMS
11 THAT YOU CAN WRITE. AND THEY DO CHORES FOR YOU. THEY DO
12 HOUSEKEEPING CHORES, WHICH IS A GOOD IDEA.

13 ONE OF THE HOUSEKEEPING CHORES THAT THIS SERVER WAS
14 CONFIGURED TO DO WAS IF I CONNECTED TO THE SERVER, ONE OF THE
15 ~~THINGS THAT IT DID WAS IT WOULD LOOK UP MY IP ADDRESS. AND~~
16 LET'S SAY, FOR EXAMPLE, I WAS ON AOL.COM. I CONNECTED THE
17 INTERNET THROUGH AOL. I WOULD HAVE TO TELL THEM THAT
18 INFORMATION. THEY CONFIGURE THIS ROBOT WHEN JIM FOTTRELL
19 CONNECTS, MAKE SURE HE'S CONNECTING FROM AOL. IF I WAS AT
20 SOMEBODY ELSE'S HOUSE, AND I CONNECTED TO THE INTERNET THROUGH
21 AN EARTHLINK INTERNET ACCOUNT, IT'S NOT GOING TO LET JIM
22 FOTTRELL IN. EVEN IF I GET ALL THE INFORMATION CORRECT, THE
23 NAME, PASSWORD, ALL THAT KIND OF STUFF, IT AUTHENTICATES WHICH
24 SERVICE PROVIDER YOU'RE CONNECTING THROUGH. SO THERE'S A LOT
25 OF -- AND HOW YOU RELAY THAT INFORMATION IS THROUGH ANOTHER

1 MEANS. EITHER THERE'S E-MAIL MESSAGES OR THROUGH INSTANT
2 MESSAGES, PEOPLE WOULD COMMUNICATE THE SYSTEM OPERATORS, HEY,
3 PLEASE CHANGE MY ACCOUNT. I USED TO BE ON AOL. NOW I'M ON
4 EARTHLINK. HERE'S MY IP INFORMATION. THE PROGRAMMER'S SYSTEM
5 OPERATOR, WOULD HAVE TO MAKE THAT CHANGE ON THE SERVER TO ALLOW
6 YOU TO CONNECT NOW. OKAY. NOW, I'M USING EARTHLINK. SO NOT
7 ONLY IS THE INFORMATION SECRET THAT YOU USE, IT ALSO
8 AUTHENTICATES WHERE YOU ARE COMING FROM. GOOD IDEA. IT'S A
9 SECURE IDEA.

10 MS. MAJOR: THE GOVERNMENT MOVES GOVERNMENT'S 257,
11 WHICH WERE THE CHARTS THAT WERE JUST SHOWN INTO EVIDENCE.

12 MR. BRANIFF: NO OBJECTION.

13 THE COURT: RECEIVED.

14 (GOVERNMENT'S EXHIBIT NO. 257 RECEIVED.)

15 BY MS. MAJOR:

16 Q. NOW, WE TALKED EARLIER ABOUT THE LOGS OR RECORDS OF THE
17 CHATS. THAT CAN -- THE CHAT CAN BE RECORDED; IS THAT RIGHT?

18 A. THAT'S CORRECT.

19 Q. AND HAVE YOU REVIEWED CHAT LOGS?

20 A. YES, I HAVE.

21 Q. APPROXIMATELY HOW MANY DIFFERENT ONES?

22 A. 30 TO 50. I DON'T KNOW SPECIFICALLY HOW MANY.

23 Q. AND DID YOU REVIEW A CHAT LOG THAT WAS MAINTAINED BY AN
24 INDIVIDUAL BY THE NAME OF BAKER OR WHO USED THE SCREEN NAME OF
25 NEELIX IN INDIANA?

1 A. YES, I HAVE.

2 Q. AND DID YOU ALSO REVIEW HIS COMPUTER TO SEE HOW HE HAD THAT
3 CONFIGURED, HOW HE HAD HIS LOGGING SYSTEM SET UP?

4 A. YES. THE CONFIGURATION SETTING FOR THE SOFTWARE.

5 Q. AT LEAST AT ONE POINT IN TIME WHAT WAS HIS CONFIGURATION
6 SET UP AS?

7 A. HE HAD HIS MIRC SOFTWARE CONFIGURED SO THAT WHEN HE
8 AUTOMATICALLY JOINED THE WONDERLAND CHANNEL AND THE OURPLACE
9 CHANNEL TO AUTOMATICALLY LOG IT. SO THERE WAS AN INDIVIDUAL
10 THAT WHENEVER HE WAS IN THE CHANNEL ALL OF THE INFORMATION THAT
11 WAS BEING DISPLAYED IN THE CHANNEL WAS SAVED IN A LOG FILE.

12 Q. NOW, IF OTHER PEOPLE WERE ALREADY IN THE ROOM WHEN HE
13 ENTERED, WOULD THE LOG SHOW THEM ENTERING?

14 A. NO, BECAUSE THEY ENTERED PREVIOUSLY TO WHEN HE STARTED

15 ~~LOGGING INTO THE CONVERSATION. SO IT'S ONLY GOING TO SHOW --~~

16 IT'S GOING TO START RECORDING THAT SNAPSHOT OF WHO WAS IN THE
17 ROOM THE MOMENT HE TURNS THE LOGGING FUNCTION ON.

18 Q. AND THE LOGGING FUNCTION AUTOMATICALLY -- DOES IT
19 AUTOMATICALLY RECORD EVERYTHING THAT'S OCCURRING IN THE CHAT,
20 WHAT IS SHOWN ON THE SCREEN?

21 A. YES.

22 Q. AND HAVE YOU REVIEWED THE LOG FOUND ON BAKER'S COMPUTER IN
23 INDIANA?

24 A. YES, I HAVE.

25 Q. DID YOU SEE ANYTHING IN IT TO INDICATE THAT IT WAS MODIFIED

1 IN ANY WAY?

2 A. NO.

3 Q. DID YOU SEE -- FROM REVIEWING IT DID IT LOOK TO YOU THAT
4 IT WAS A LOG THAT WAS CREATED BY THE AUTOMATIC LOGGING
5 FUNCTION?

6 A. YES.

7 Q. I'M GOING TO SHOW YOU WHAT'S MARKED AS GOVERNMENT'S EXHIBIT
8 128. DO YOU RECOGNIZE THAT?

9 A. YES, I DO.

10 (GOVERNMENT'S EXHIBIT NO. 128 IDENTIFIED.)

11 BY MS. MAJOR:

12 Q. AND IS IT A RECORD OF A CONVERSATION OR LOOK AT THE TOP OF
13 IT. WHAT CAN YOU TELL US FROM LOOKING AT THE FIRST PAGE UP AT
14 THE TOP?

15 A. THE FIRST ENTRY IN THE LOG FILE IS THE DATE AND TIME THAT
16 THE SESSION STARTS. SO IT SAYS SESSION START NOVEMBER 3RD,
17 2003, 1997. SO THE FIRST LOG ENTRY IS WHEN THE LOG IS OPENED
18 OR AT WHAT POINT IN TIME IT'S ACTIVE.

19 Q. AND THEN WHAT -- TELL US WHAT THESE NEXT COUPLE OF LINES
20 SAY AND WHAT THEY MEAN.

21 A. IT SAYS YOU ARE NOW TALKING IN OURPLACE. THAT WOULD BE THE
22 FIRST MESSAGE YOU WOULD SEE WHEN YOU JOIN THAT CHANNEL. SO
23 IT'S LIKE JOIN THE OURPLACE CHANNEL. THE FIRST MESSAGE THAT
24 YOU SEE IS YOU ARE NOW IN THE CHANNEL. ANOTHER SYSTEM MESSAGE
25 IS THE CHANNEL SERVER SETS MODE PLUS-0 FOR NEELIX.

1 Q. WHAT DOES THAT MEAN?

2 A. PLUS-0 IS OPERATOR STATUS. SO BASICALLY THIS SERVER IS
3 CONFIGURED TO AS SOON AS NEELIX ENTERS THE CHANNEL IT GIVES HIM
4 OPERATOR STATUS. THERE ANOTHER ENTRY BY OPERATOR EX OR
5 EXCALIBUR, WHO IS AUTOMATICALLY AUTHENTICATES HIM.

6 Q. AND THEN THE NEXT LINE DOWN WHERE YOU SEE THREE STARS AND
7 THEN TONKA, WHAT'S THAT?

8 A. THAT WOULD BE -- I CAN'T SEE THE REST OF THE LINE, BUT
9 IT'S GOING TO SHOW. IT'S A SYSTEM MESSAGE. TONKA, THERE'S THE
10 ADDRESS WHERE TONKA IS LOCATED IN. AND THERE WILL BE MESSAGES
11 WHETHER THEY'LL JOIN THE CHANNEL OR WHEN THEY'LL LEAVE THE
12 CHANNEL. AND THEN THERE'S ANOTHER -- A CHANNEL SERVER AGAIN
13 DOES A SET MODE PLUS OPERATOR STATUS FOR TONKA. AS SOON AS
14 PEOPLE GET AUTHENTICATED INTO THE CHANNEL THEY ARE GIVEN
15 ~~OPERATOR STATUS BY ONE OF THE ROBOTS, BY THE BOX.~~

16 Q. THEN DESCRIBE FOR US WITHOUT THE CONTENTS IN THIS FORM,
17 WHAT IS HAPPENING OVER HERE LINE BY LINE?

18 A. WHAT YOU WILL SEE ON THE LEFT-HAND SIDE AGAIN, THERE'S THE
19 INFORMATION THAT'S WITHIN THE ANGLE BRACKETS. IT IS THE
20 NICKNAME OF THE PERSON WHO IS SAYING SOMETHING OR MAKING A
21 STATEMENT. SO THERE'S BASICALLY A FIX WHICH SAYS, "HEY, FOUND
22 ANOTHER LOST SOUL." AND THEN THERE'S ANOTHER ENTRY BY A PERSON
23 CALLED THE FLY WHO SAYS TONKA. SO YOU'LL SEE MESSAGES, AND IT
24 KIND OF INDICATES ON THE LEFT-HAND SIDE WHO IS TALKING OR WHO
25 IS MAKING THOSE STATEMENTS.

1 Q. NOW, IT SHOWS UP LINE BY LINE WHERE YOU SEE ONE GUY TALKING
2 THEN FIX, FIX, FIX. IS THAT NECESSARILY IN A CORRECT
3 SEQUENTIAL ORDER?

4 A. NO, NOT NECESSARILY. IT GETS OUT OF SEQUENCE A LITTLE BIT.
5 AND THE ANALOGY I USE IS IMAGINE YOU ARE WORKING THROUGH THE
6 ROOM AND 20 PEOPLE ARE HAVING CONVERSATIONS AT THE SAME TIME.
7 SO THERE ARE KIND OF 20 DIFFERENT THINGS GOING ON. AND THERE'S
8 DIFFERENT CONVERSATIONS GOING ON. SO TWO PEOPLE -- YOU CAN
9 GET QUESTIONS FROM TWO PEOPLE, AND THEN YOU'LL GET AN ANSWER
10 AND SOMEBODY WILL ASK A QUESTION, AND THEN YOU GET THE ANSWER A
11 LITTLE BIT LATER. SO IT'S A LITTLE BIT HARD TO READ THROUGH
12 THIS STUFF, AND YOU'VE GOT TO GO SLOW AND TAKE YOUR TIME. IT
13 GETS OUT OF SEQUENCE, BUT IF YOU GET IN THE HABIT OF READING --
14 OF THE FORMAT, THEN YOU KIND OF PUT IT BACK TOGETHER, AND IT
15 MAKES LOGICAL SENSE.

16 Q. LET ME SHOW YOU ON PAGE 4. DO YOU SEE A --

17 A. RIGHT THERE.

18 Q. RIGHT HERE. WHAT DOES THAT LINE SAY?

19 A. THERE'S THREE ASTERISKS AGAIN. SO IT SAYS -- IT'S A SYSTEM
20 MESSAGE SAYING THE NICKNAME TURKEYTAIL WITH THE INFORMATION IN
21 PARENTHESIS, THE USER NAME AND WHAT IP ADDRESS THEY'RE
22 CONNECTING FROM HE HAS JOINED THE CHANNEL, HAS JOINED
23 OURPLACE.

24 Q. AND THE TURKEYTAIL, THE PART ON THE OUTSIDE IS INFORMATION
25 THAT THE USER CAN SET. IT'S A NICKNAME THAT THE USER SETS; IS

1 THAT RIGHT?

2 A. IT'S A NICKNAME THAT THEY CHOSE, THAT THEY TYPED RIGHT
3 BEFORE THEY JOINED THIS CHANNEL, RIGHT.

4 Q. AND THEN ONCE YOU'RE INSIDE THE PARENTHESES, THE
5 INFORMATION BEFORE THE @ SIGN -- IT'S SORT OF HARD TO --

6 A. IT'S THE USER I.D. SO IN A SENSE THE USER I.D. PONYTAILS
7 AND THEN THERE'S THE @ SIGN. AND THEN TO THE RIGHT OF THE @
8 SIGN IS THIS LONG NAME. AND THAT NAME IS THE EASY HUMAN
9 READABLE VERSION OF AN IP ADDRESS. THAT'S THE NAME OF THE IP
10 ADDRESS. THAT'S WHATEVER PARTICULAR IP ADDRESS ON THE INTERNET
11 IS NAMED.

12 Q. AND THAT WOULD BE THE COMPUTER THAT THIS PERSON USING
13 TURKEYTAIL AND PONYTAILS IS COMING FROM?

14 A. CORRECT.

15 Q. NOW, LET ME SHOW -- WE'VE SEEN WHERE THERE ARE A NAME IN
16 BRACKETS, IF YOU WILL, AND THAT'S THE PERSON WHO'S TALKING AND
17 WHAT HE OR SHE IS SAYING; IS THAT RIGHT?

18 A. THAT'S CORRECT.

19 Q. IS IT ALSO POSSIBLE FOR THEM TO MAKE, LET'S SAY, COMMENTS?

20 A. CORRECT.

21 Q. FOR EXAMPLE, LOOK AT THE BOTTOM, IF YOU COULD DESCRIBE WHAT
22 THAT MEANS.

23 A. THERE'S OTHER MESSAGES THAT ARE IN THE CHANNEL THAT ARE
24 DENOTED WITH A SINGLE ASTERISK, AND THOSE ARE BASICALLY NOT
25 SUPPOSED TO BE CONVERSATIONS, BUT THEY'RE LIKE EVENTS THAT ARE

1 OCCURRING. IT'S KIND OF LIKE THE ANALOGY THAT IF YOU WANTED TO
2 EXPRESS AN EMOTION OR COMMENT. YOU WANT TO SMILE. YOU WANT TO
3 FROWN. YOU WANT TO USE NONVERBAL COMMUNICATIONS. SO IT'S KIND
4 OF AN INDICATOR OF NONVERBAL COMMUNICATIONS. THERE'S A MESSAGE
5 WHERE TURKEYTAIL DIVES UNDER THE DESK. IT'S KIND OF NOT
6 SOMETHING THAT -- A NONVERBAL MESSAGE THAT GETS POSTED TO THE
7 CHANNEL.

8 Q. IS IT POSSIBLE FOR INDIVIDUALS ONCE THEY ARE IN THE CHAT
9 ROOM TO DECIDE TO CHANGE THEIR SCREEN NAME?

10 A. YES, IT IS.

11 Q. OKAY. LET ME SHOW YOU. RIGHT THERE. WOULD YOU DESCRIBE
12 WHAT THAT LINE IS SAYING?

13 A. THERE'S ANOTHER SYSTEM LOVES MESSAGE WITH THE THREE
14 ASTERISK AT THE BEGINNING. AND IT SAYS TURKEYTAIL IS NOW KNOWN
15 AS PONYLOVESPONY. IF SO THAT'S JUST BASICALLY LETTING EVERYONE
16 IN THE CHANNEL KNOW THAT, HEY, THERE IS A NICKNAME CALLED
17 TURKEYTAIL. AND NOW WHENEVER -- TURKEYTAIL IS SAYING THOSE
18 MESSAGES ARE GOING TO BE PRECEDED BY PONYLOVESPONY. SO THAT'S
19 JUST A SYSTEM MESSAGE SHOWING THAT THE INDIVIDUAL CHANGED THEIR
20 NAME FROM TURKEYTAIL TO PONYLOVESPONY. SO YOU CAN FOLLOW ON.

21 LATER ON YOU WILL SEE MESSAGES. THEY WON'T BE FROM
22 TURKEYTAIL ANYMORE. THEY WILL BE FROM PONYLOVESPONY.

23 Q. WHEN A PERSON IN AN IRC CHAT ROOMS TYPES A STATEMENT,
24 WORDS THAT THEY WANT TO SAY TO EVERYBODY ELSE, DO THEY HAVE TO
25 ACTUALLY TYPE THEIR NAME OUT FIRST?

1 A. NO. THE SYSTEM DOES THAT AUTOMATICALLY.

2 Q. OKAY. SO THE NEXT TIME -- THE NEXT TIME THAT THE PERSON
3 WHO CAME ON INITIALLY AS TURKEYTAIL AND WHO HAS NOW CHANGED HIS
4 NAME TO PONYLOVESPONY, THE NEXT TIME HE TYPES OUT WORDS, DOES
5 IT SHOW UP AS PONYLOVESPONY SAYING SOMETHING?

6 A. YES, IT DOES. IT SAYS, SPEAKING OF KICKING ASS, I AM
7 GETTING -- IT WENT BY TOO FAST.

8 Q. I TOOK IT OFF. THAT'S OKAY.

9 HAS IRC DEVELOPED ITS OWN SLANG OVER TIME?

10 A. YES, IT HAS. I MEAN, JUST PEOPLE WITH BETTER COMMUNICATING
11 SKILLS USING THE COMPUTERS, THEY ARE DOING TYPING, THEY WANT TO
12 KIND OF DO MINIMIZED -- PEOPLE, INCLUDING MYSELF, ARE NOT
13 REALLY GOOD TYPISTS, SO THEY WANT TO MINIMIZE YOUR KEY STROKES,
14 SO THERE'S KIND OF A SLANG OF TYPING LESS CHARACTERS TO SAY
15 MESSAGES.

16 Q. COULD YOU GIVE US SOME EXAMPLES?

17 A. READING THROUGH THE LOG FILES YOU KIND OF LEARN THE SLANG A
18 LITTLE BIT. FOR EXAMPLE, YOU'LL SEE AN ENTRY THAT SAYS AFK
19 WHICH STAND FOR AWAY FROM KEYBOARD. YOU'LL SEE MESSAGES THAT
20 SAY BRB, BE RIGHT BACK. OR YOU'LL SEE THINGS LIKE LOL,
21 LAUGHING OUT LOUD. THERE'S LITERALLY HUNDREDS OF THEM. YOU
22 CAN GO TO WEB SITES THAT HAVE ALL OF THESE SHORTCUTS OR THESE
23 SLANGS WHERE YOU ARE SAVING TYPING. AND YOU CAN TYPE THINGS
24 KIND OF INCORRECTLY. FOR EXAMPLE, INSTEAD OF SAYING SEE YOU
25 LATER, THEY'LL TYPE IT OUT CUL, THE NO. 8 AND THEN AN "R."

1 IT'S KIND OF A COOL WAY OF TALKING IF YOU GET THE SLANG KIND
2 OF. SHOWS YOU ARE AN EXPERIENCED PERSON.

3 Q. WHAT ABOUT THE TERM "DCC." IF YOU SEE IN THE CHAT ROOM
4 SOMETHING ALONG THE LINES OF I'LL DCC YOU?

5 A. JUST A METHOD -- KIND OF A SLANG WAY OF SAYING, HEY, I'LL
6 SEND YOU SOMETHING VIA THE DCC COMMAND -- DIRECT CLIENT
7 CONNECTION.

8 Q. AND WHAT ABOUT THE TERM "LEACH"?

9 A. LEACH. LEACH ARE KIND OF COMMON IN THE FTP SERVER ARENA.
10 IF I HAVE AN FTP SERVER OF IMAGES AND YOU HAVE AN FTP SERVER OF
11 IMAGES, SOMETIMES PEOPLE WILL HAVE THIS RATIO. I'LL TRADE YOU
12 ONE-FOR-ONE OR I'LL TRADE YOU THREE-FOR-ONE. THERE'S A RATIO
13 OF THREE TO ONE. FOR EXAMPLE, THE CONCEPT OF A LEACH IS IF YOU
14 DO ME A FAVOR OR DO SOMETHING I LIKE, I'LL LET YOU LEACH OFF OF
15 MY COLLECTION. I'LL CLOSE MY EYES. YOU CAN KIND OF TAKE

16 WHATEVER FILES YOU WANT. I WON'T KEEP TRACK OF WHAT YOU ARE
17 DOING. YOU CAN DOWNLOAD ANY OF THE FILES YOU WANT. I'LL LET
18 YOU LEACH OFF OF MY COLLECTION. THAT'S KIND OF SLANG FOR THAT.

19 Q. ARE YOU FAMILIAR WITH THE PROGRAM DELTA DIRECTORY AND SUPER
20 LISTER?

21 A. YES, I AM.

22 Q. WHAT ARE THOSE?

23 A. THOSE ARE WINDOWS PROGRAMS. THEY'RE KIND OF JUST LIKE
24 ORGANIZATIONAL TOOLS. AND THE ANALOGY AND WHY THE TOOLS OF
25 THOSE NATURE ARE AVAILABLE IS THIS: LET'S SAY I HAVE A

1 COLLECTION OF 30,000 OR 40,000 PICTURES AND YOU HAVE A
2 SELECTION OF 30,000 OR 40,000 PICTURES, AND I WANT TO TRADE,
3 AND I WANT TO GET THE ONES THAT I DON'T HAVE. HOW DO YOU
4 DETERMINE IF I HAVE 30,000 OR 40,000? AND YOU HAVE 30,000 OR
5 40,000, I DON'T WANT TO GO THROUGH EVERY INDIVIDUAL PICTURE.
6 IT'S KIND OF A LOT OF WORK. SO THERE ARE THESE TOOLS SUCH AS
7 SUPER LISTER OR DELTA DIRECTORY WHERE IT BUILDS A LIST. SO
8 WHAT I COULD DO IS TAKE MY COLLECTION OF PICTURES AND USE THIS
9 SUPER LISTER PROGRAM OR DELTA DIRECTORY PROGRAM, POINT IT AT MY
10 COLLECTION, AND IT WILL GENERALLY GENERATE AN INDEX OF MY
11 COLLECTION. I'LL SEND YOU THAT INDEX, AND YOU'LL DO THE SAME,
12 YOU'LL SEND AN INDEX OF YOUR PICTURES. IT'S KIND OF COOL.
13 IT'S KIND OF LIKE TRADING A LIST OF CARDS THAT YOU HAVE. KIND
14 OF TRADING YOUR TABLE OF CONTEXT OF YOUR COLLECTION. AND THIS
15 ~~SOFTWARE PACKAGE KIND OF DOES THIS AUTOMATICALLY FOR YOU. IT~~
16 WILL MERGE THAT DATABASE, IF YOU WILL, THE LIST OF PICTURES
17 WITH WHAT YOU HAVE. AND WHAT'S KIND OF COOL IS THAT IF I HAVE
18 A LIST OF 30 OR 40,000 PICTURES AND YOU HAVE A LIST AND WE
19 EXCHANGE LISTS, THE PROGRAM IS ACTUALLY SMART ENOUGH THAT IT
20 CAN GENERATE COMMANDS TO GO OUT AND GET THE FILE THAT YOU ARE
21 MISSING. THAT'S KIND OF COOL. YOU CAN JUST SAY THESE ARE THE
22 FILES THAT YOU HAVE AVAILABLE. THESE ARE THE FILES THAT I
23 HAVE. IT GENERATES A LIST OF FILES THAT I DON'T HAVE, AND IT
24 CAN GENERATE THE COMMANDS TO GO GET THEM FROM THE OTHER SITE.
25 IT'S KIND OF A COOL, EFFICIENT TOOL.

1 Q. AND IN ORDER FOR THAT TO WORK, THE TWO INDIVIDUALS HAVE TO
2 EXCHANGE THEIR LISTS.

3 A. CORRECT.

4 Q. AND THE PERSON WHO'S GOING TO LET THE OTHER ONE GET COPY
5 MESSAGES HAS TO GIVE THIS PERSON ACCESS TO HIS COMPUTER?

6 A. THAT'S CORRECT.

7 Q. THAT'S GENERALLY DONE VIA FTP?

8 A. CORRECT.

9 Q. WHEN YOU ARE LOOKING AT A -- OR WHEN THE DELTA DIRECTORY
10 SOFTWARE CREATES A FILE OF ALL OF THE IMAGES THAT YOU HAVE,
11 DOES IT PUT AN IDENTIFIED THREE LETTER -- IDENTIFYING THREE
12 LETTERS AT THE END OF THE FILE NAME?

13 A. YES. FOR EXAMPLE, LIKE IN THE WINDOWS ENVIRONMENT AND KIND
14 OF LEFT OVER FROM THE OLD DOS DAYS, FILE NAMES ARE
15 ~~TRADITIONALLY EIGHT CHARACTERS AND A DOT AND THEN THREE~~
16 CHARACTERS. FOR EXAMPLE, A .VOC MIGHT BE A WORD PERFECT
17 DOCUMENT. A .TXT MIGHT BE A TEXT FILE. THOSE KINDS OF
18 THINGS.

19 SUPER LISTER, FOR EXAMPLE, CREATES FILES WITH THE
20 EXTENSION .SLD FOR SUPER LISTER. DELTA DIRECTORY CREATES FILES
21 WITH THE EXTENSION .VED AT THE END. SO YOU KIND OF KNOW THAT
22 THOSE ARE DELTA DIRECTORY FILES, JUST LIKE YOU KNOW THAT A .DOC
23 IS A WORD DOCUMENT.

24 Q. HAVE YOU REVIEWED THE FTP LOG THAT WAS FOUND ON THE
25 DEFENDANT'S COMPUTER?

1 A. YES.

2 Q. DID YOU SEE -- HAVE YOU REVIEWED OTHER FTP LOGS AS WELL?

3 A. YES, I HAVE.

4 Q. DID YOU SEE ANYTHING IN THE DEFENDANT'S FTP LOG THAT LED
5 YOU TO BELIEVE THAT IT HAD BEEN MODIFIED IN ANY WAY?

6 A. NO.

7 Q. DID YOU SEE ANYTHING IN IT TO INDICATE THAT IT WAS NOT AN
8 ACCURATE LOG FILE GENERATED BY THE WAR-FTP SOFTWARE OF THE
9 TRANSFERS THAT OCCURRED FROM THE DEFENDANT'S COMPUTER?

10 A. NO.

11 Q. IN THAT LOG FILE DID YOU SEE NICKNAMES AND IP ADDRESSES
12 THAT YOU RECOGNIZED AS BELONGING TO MEMBERS OF THE CHESHIRE CAT
13 AND OPERATION CATHEDRAL BLUE?

14 A. YES, I DID.

15 ~~Q. WHEN YOU'RE OPERATING AN FTP SERVER, IS THERE AN ADVANTAGE~~
16 ~~TO HAVING CABLE INTERNET ACCESS?~~

17 A. YES.

18 Q. EXPLAIN THAT TO US.

19 A. CABLE INTERNET -- TRADITIONALLY TO GET CONNECTED TO THE
20 INTERNET TAKES A COUPLE OF DIFFERENT WAYS. PEOPLE IN THEIR
21 RESIDENCES HAVE DIAL-UP CONNECTION TO THEIR PHONE LINES. YOUR
22 COMPUTER IN YOUR HOUSE WITH THE MODEM WILL CONNECT TO THE
23 INTERNET THROUGH YOUR TELEPHONE LINE. AND THAT'S DEPENDING ON
24 THE LEVEL OF SERVICE. IT'S GENERALLY GOT 56K CONNECTION -- YOU
25 WILL HEAR THAT -- OR 33.6 CONNECTION. THAT'S KIND OF THE

1 LIMITS OF THE PHONE LINE.

2 THE COAX CABLE -- THERE'S FASTER METHODS TO GET ON THE
3 INTERNET. CABLE MODEMS ARE POPULAR. THEY USE COAX CABLE, THE
4 SAME CABLE AS YOUR CABLE TV IS USING TO SEND INTERNET DATA.
5 YOU CAN GET INTERNET DATA THROUGH YOUR CABLE COMPANY. YOU CAN
6 GET INTERNET CABLE ACCESS THROUGH YOUR PHONE. THERE ARE NEW
7 THINGS OUT THERE LIKE DSL OR ADSL, WHICH IS A HIGHER SPEED
8 CONNECTION.

9 SO TO MAKE A LONG STORY SHORT, CABLE MODEM IS WHAT'S
10 CALLED A THICK PIPE. IT'S A FAST CONNECTION TO THE INTERNET.
11 IT'S ORDERS OF MAGNITUDE FASTER THAN A DIAL-UP CONNECTION.

12 Q. SO IF YOU WERE RUNNING AN FTP SERVER ON A CABLE MODEM OR A
13 CABLE ACCESS AS OPPOSED TO A DIAL-UP MODEM, IS IT GOING TO BE
14 MUCH FASTER TO GET THOSE PICTURES?

15 A. CORRECT. IT'S A MUCH FASTER CONNECTION, AND IT CAN SUPPORT
16 A LARGER NUMBER OF SIMULTANEOUS CONNECTIONS AS WELL. YOU CAN
17 SIMULTANEOUSLY BE SENDING AND RECEIVING TO MULTIPLE RECIPIENTS.

18 Q. LET'S SWITCH GEARS NOW. ARE YOU FAMILIAR WITH SOFTWARE
19 THAT PERMITS A PERSON TO MODIFY IMAGES?

20 A. YES, I AM.

21 Q. TELL US ABOUT THAT TYPE OF SOFTWARE?

22 A. THERE'S A LOT OF -- ADOBE IS A COMPANY THAT MAKES A LOT OF
23 GRAPHICS RELATED SOFTWARE. THEY MAKE SOME THINGS CALLED LIKE
24 PAGE MAKER AND IMAGE ASSISTANT. THERE'S TONS OF GRAPHIC
25 SOFTWARE OUT THERE THAT ALLOW YOU TO MANIPULATE AN IMAGE. YOU

1 Q. FROM YOUR WORK ON CHESHIRE CAT AND OTHER INVESTIGATIONS,
2 HAVE YOU BECOME FAMILIAR WITH INTERNET RELAY CHAT?

3 A. YES. .

4 Q. HAVE YOU PERSONALLY PARTICIPATED IN CHAT ROOM DISCUSSION?

5 A. YES, I HAVE.

6 Q. WOULD YOU DESCRIBE FOR US IN GENERAL WHAT INTERNET RELAY
7 CHAT IS?

8 A. INTERNET RELAY CHAT IS KIND OF A TOOL THAT IS USED ON THE
9 INTERNET. IT ALLOWS FOR MULTIPLE INDIVIDUALS TO HAVE
10 CONVERSATIONS IN REALTIME. IT'S DIFFERENT FROM E-MAIL. IF I
11 SEND YOU AN E-MAIL MESSAGE, THERE'S A DELAY. I SENT THE
12 MESSAGE, AND YOU MAY NOT READ THAT MESSAGE FOR 15 MINUTES, TWO
13 DAYS, A PERIOD OF TIME. THE BIG BENEFIT OF IRC IS LIKE A
14 REALTIME CONDUCTIVITY.

15 ~~THE OTHER SECOND MOST POPULAR BENEFIT IS IT ALLOWS FOR~~
16 MULTIPLE USERS. THERE'S THIS WHOLE CONCEPT OF CHANNELS OR
17 CHAT ROOMS WHERE I CAN HAVE A CHANNEL TO A PARTICULAR
18 TOPIC, LIKE FOOTBALL OR SPORTS. AND LET'S SAY I'M INTO A
19 FOOTBALL CHANNEL, I WOULD GO INTO THIS CHANNEL CALLED
20 FOOTBALL, AND THERE WOULD BE OTHER INDIVIDUALS THERE THAT
21 ARE ALL DISCUSSING ISSUES OF FOOTBALL.

22 Q. DID YOU PREPARE SOME SLIDES OR DOCUMENTS TO HELP YOU
23 EXPLAIN YOUR TESTIMONY ABOUT INTERNET RELAY CHAT?

24 A. YES, I DID.

25 Q. WOULD YOU DESCRIBE FOR US TO THE -- IF YOU HAVEN'T ALREADY

1 WHAT INTERNET RELAY CHAT IS?

2 A. IT'S BASICALLY -- IT'S A GENERAL TOOL -- A COMMUNICATION
3 TOOL. WHENEVER I TALK ABOUT THE INTERNET, ONE OF THE THINGS
4 THAT THE INTERNET IS USED FOR PRIMARILY IS GENERALLY A
5 COMMUNICATION TOOL. IT'S USED TO ALLOW DIFFERENT INDIVIDUALS
6 TO COMMUNICATE IN DIFFERENT METHODS EITHER BY A WEB SITE OR BY
7 OTHER MEANS. SO IRC IS BASICALLY A COMMUNICATION TOOL. I CAN
8 GO THROUGH SOME BACKGROUND, SOME FUTURE, AND A LITTLE BIT OF
9 SOME SCREEN SNAPSHOTS.

10 Q. OKAY. WOULD YOU TELL US HOW IRC CAME ABOUT?

11 A. IT KIND OF BECAME INTERNATIONALLY KNOWN IN 1991 DURING THE
12 PERSIAN GULF WAR. IT WAS KIND OF A REALLY INTERESTING IDEA.
13 TRADITIONALLY HUMAN BEINGS AND INDIVIDUALS RELY ON NEWSPAPER
14 AND MEDIA TO GET INFORMATION, SO THERE'S A FILTER. SO HERE'S A
15 ~~CONCEPT WHERE DURING THE PERSIAN GULF WAR, INDIVIDUALS ON THEIR~~
16 COMPUTER COULD ACTUALLY BE IN THE TRENCHES, SO TO SPEAK. THEY
17 COULD BE IN A PARTICULAR AREA OF THE COUNTRY, AND THEY COULD
18 GET ON THEIR COMPUTER AND GET INTO A CHANNEL, GET INTO A CHAT
19 ROOM AND DESCRIBE THE EVENTS THAT ARE GOING ON. AND OTHER
20 PEOPLE IN THE WORLD, ANYWHERE IN THE WORLD THAT HAPPENED TO BE
21 IN THAT CHANNEL CAN SEE THOSE CONVERSATIONS.

22 SO A COOL ASPECT IS JUST LIKE AN UNFILTERED ACCESS.
23 THERE'S NO MIDDLEMAN. WE'RE NOT GOING THROUGH A NEWS MEDIA.
24 WE'RE NOT GOING THROUGH AN INTERMEDIARY. THIS IS JUST ANY
25 INDIVIDUAL AROUND THE WORLD WHO CAN COMMUNICATE IN REALTIME.

1 SO IT WAS VERY, VERY -- KIND OF GAINED POPULARITY DURING THE
2 PERSIAN GULF WAR. AND, AGAIN, IN 1993 WITH THE COUP AGAINST
3 BORIS YELTSIN IN THE USSR, HERE IS AN EXAMPLE OF INDIVIDUALS
4 THAT ARE IN THE SOVIET UNION WHO COULD GET ON COMPUTERS AND
5 DESCRIBE WHAT HAPPENED IN THE TOWN SQUARE THAT DAY. AND THAT
6 INFORMATION WOULD BE POPULAR -- WOULD PROPAGATE AROUND THE
7 WORLD.

8 Q. WOULD YOU TELL US THE DIFFERENCE -- SUMMARIZE FOR US THE
9 DIFFERENCES BETWEEN IRC AND E-MAIL?

10 A. MULTIPLE PEOPLE CAN SEND AND RECEIVE MESSAGES IN REALTIME.
11 IT'S NOT JUST -- E-MAIL TRADITIONALLY WAS ONE TO ONE
12 COMMUNICATION. I'LL SEND YOU AN E-MAIL, AND I'LL SEND SOMEBODY
13 ELSE AN E-MAIL MESSAGE. E-MAIL ALSO ALLOWS YOU TO SEND IT TO A
14 GROUP, SO I CAN SEND IT TO THREE INDIVIDUALS.

15 ~~BUT THE BENEFIT THERE IS THERE'S JUST A LITTLE BIT OF~~
16 A LAG. SO IRC IS REALLY GEARED TOWARDS REALTIME.

17 E-MAIL ALSO OPERATES ON A STORE AND FORWARD MESSAGE.
18 THAT'S AN IMPORTANT POINT. E-MAIL MESSAGES GET STORED. SO IF
19 I SEND AN E-MAIL MESSAGE, AND I SEND IT TO YOUR COMPUTER, IT'S
20 BEING STORED ON AN INTERMEDIARY HOST ALONG THE WAY. IRC, THE
21 MESSAGES THAT YOU TYPE, ARE NOT BEING STORED PERMANENTLY ON
22 ANYBODY'S COMPUTER. THEY ARE JUST BEING DISPLAYED ON OTHER
23 PEOPLE'S COMPUTER.

24 Q. AND WHAT ARE THE MAIN FEATURES OF IRC?

25 A. THE INDIVIDUALS ARE ORGANIZED, LIKE THE STRUCTURE IS

1 ORGANIZED INTO WHAT THEY CALL CHANNELS. ANOTHER EXAMPLE MIGHT
2 BE CALLED CHAT ROOMS. AOL HAS THE CONCEPT OF A CHAT ROOM.

3 BASICALLY YOU CAN DEFINE A LIST OF CHANNELS. YOU CAN
4 HAVE SPORTS CHANNELS -- WHATEVER THE NUMBER OF CHANNELS AND THE
5 NAMES OF THE CHANNELS SPAN THE HUMAN ENDEAVOR. THEY'RE
6 SPORTS-RELATED. THERE'S COMPUTER-RELATED CHAT ROOMS AND
7 CHANNELS. SO

8 THE NUMBER OF CHANNELS IS PROBABLY QUITE A FEW OF THEM. AND
9 WHAT MAKES A NETWORK A NETWORK IS THE LIST OF CHANNELS THAT IT
10 SUPPORTS.

11 ANOTHER FEATURE IS IT ALLOWS FOR THIS DIRECT CLIENT TO
12 CLIENT CONNECTION. IT ALLOWS FOR ME TO BREAK OFF FROM THIS
13 COMMON DISCUSSION AREA TO SEND YOU A PRIVATE MESSAGE OR FOR YOU
14 AND I TO HAVE A PRIVATE CONVERSATION.

15 Q. LET ME INTERRUPT HERE FOR A SECOND. IF AN INDIVIDUAL IS IN
16 A CHAT ROOM TALKING TO A GROUP -- TALKING TO THE GROUP OF
17 PEOPLE IN THAT ROOM, CAN THEY ALSO ENGAGE IN THIS DCC DIRECT
18 CLIENT CONNECTION?

19 A. CORRECT.

20 Q. HOW DOES THAT WORK?

21 A. BASICALLY THERE'S THE ABILITY TO THAT ONCE YOU'RE IN A
22 CHANNEL OR YOU ARE IN A CHAT ROOM YOU CAN SEE A LIST OF THE
23 MEMBERS THAT ARE IN THE CHANNEL. YOU CAN HIGHLIGHT ONE OF THEM
24 AND THEN THROUGH THE APPROPRIATE MOUSE CLICKS OR KEY CLICKS OR
25 JUST SELECTING THE CORRECT COMMAND, INITIATE A PRIVATE

1 CONVERSATION. AND THEN THAT PRIVATE CONVERSATION GOES ON
2 OUTSIDE OF WHAT'S HAPPENING IN THE REST OF THE CHANNEL.

3 Q. IF YOU WERE ENGAGING IN THAT CONDUCT WHERE YOU ARE IN A
4 CHAT ROOM AND TALKING ONE TO ONE WITH A PERSON VIA DIRECT
5 CLIENT CONNECTION, WOULD YOU STILL SEE WHAT'S ON THE SCREEN IN
6 THE CHAT ROOM?

7 A. YES.

8 Q. SO DESCRIBE HOW THAT HAPPENS?

9 A. SO BASICALLY IF I WAS STARTING A DIRECT CLIENT CONNECTION
10 WITH AN INDIVIDUAL, ANOTHER WINDOW WOULD OPEN UP, AND I COULD
11 HAVE THAT PRIVATE CONVERSATION. I MEAN, YOU COULD JUST
12 LITERALLY MOVE THAT WINDOW OUT OF THE WAY OR MINIMIZE THAT
13 WINDOW, AND YOU COULD STILL SEE WHAT'S HAPPENING IN THE MAIN
14 CHANNEL.

15 Q. CAN YOU USE THIS DIRECT CLIENT CONNECTION TO SEND MESSAGES,
16 TALK, CHAT, WORDS?

17 A. YES.

18 Q. CAN YOU ALSO USE IT TO SEND IMAGES OR FILES?

19 A. EXCUSE ME. YES, YOU CAN. BASICALLY THE MIRC, THE SOFTWARE
20 ALLOWS FOR THE CONNECTION OF FTP SOFTWARE. FTP STANDS FOR FILE
21 TRANSFER PROTOCOL. AND THE PROTOCOL THAT'S AS OLD AS THE
22 INTERNET, THAT'S A GENERIC WAY FOR FILES TO MOVE FROM ONE
23 COMPUTER TO ANOTHER COMPUTER.

24 Q. ACTUALLY, LET ME GO BACK AND MAYBE I MISUNDERSTOOD, BUT THE
25 DIRECT CLIENT CONNECTION, THE DCC, CAN THAT BE USED TO SEND

FOTTRELL - DIRECT EXAM BY MS. MAJOR, 1-19-00

1 FILES OR IMAGES?

2 A. YES, YOU CAN. YOU CAN DCC TEXT MESSAGES TO ONE ANOTHER.
3 AND WE CAN ALSO DIRECT CLIENT CONNECTION FILES TO OTHER
4 INDIVIDUALS, CORRECT. YOU CAN USE DCC FOR MESSAGES AND FOR
5 IMAGES TO BE -- FILES TO BE TRANSFERRED.

6 Q. AND THAT WOULD GO FROM ONE COMPUTER OR ONE PERSON TO
7 ANOTHER?

8 A. CORRECT.

9 Q. AND THAT WOULD BE ACCOMPLISHED VIA AN IP ADDRESS?

10 A. CORRECT.

11 Q. HOW WOULD THE COMPUTER KNOW WHICH IP ADDRESS TO USE?

12 A. WHEN YOU JOIN THE CHANNEL OR WHEN YOU COMMIT TO THE CHAT --
13 THE ROOM, THAT INFORMATION IS STORED IN THE COMPUTER. THAT'S
14 HOW YOU HAVE ACCESS TO THE COMPUTER. IT'S ALMOST LIKE A PHONE
15 NUMBER. IF I'M PLACING A PHONE CALL FROM ONE PHONE TO ANOTHER,
16 LIKE WHEN I PICK UP THE PHONE AND DIAL IT, THE NUMBER AT THE
17 OTHER END, WHEREVER THAT'S LOCATED, IS WHAT PICKS UP. SO
18 THAT'S A CONVERSATION BETWEEN MACHINE "A" AND MACHINE "B," AND
19 IT'S A FIXED MACHINE, CORRECT.

20 Q. SO WHEN YOU FIRST ENTER A CHAT ROOM, YOUR COMPUTER PROVIDES
21 ITS ADDRESS TO THE CHAT ROOM SERVER; IS THAT RIGHT?

22 A. THAT'S CORRECT.

23 Q. AND THEN IF YOU WERE TO ENGAGE IN THIS DCC DIRECT CLIENT
24 CONNECTION, YOUR COMPUTER WOULD USE THE IP ADDRESS THAT HAD
25 BEEN PROVIDED BY THE PERSON YOU WERE TALKING TO --

1 A. CORRECT.

2 Q. -- ON THE COMPUTER?

3 A. CORRECT.

4 Q. OKAY. YOU HAD STARTED TALKING ABOUT FILE TRANSFER
5 PROTOCOL. WHAT WAS THAT, AND HOW DOES THAT WORK?

6 A. FILE TRANSFER -- FTP, FILE TRANSFER PROTOCOL IS A PROTOCOL
7 THAT'S PART OF THE INTERNET. IT'S PART OF THE TCP/IP PROTOCOL.
8 IT'S JUST A WAY FOR THE COMPUTER TO TRANSFER FILES. THIS
9 SOFTWARE, THAT'S THE MIRC SOFTWARE, MAKES IT VERY POPULAR. SO
10 A LOT OF SOFTWARE -- A LOT OF CLIENTS, A LOT OF PEOPLE ARE
11 USING FTP SITES TO TRANSFER FILES FROM ONE PERSON TO ANOTHER.

12 THE COURT: LET'S TAKE OUR MORNING BREAK AT THIS
13 TIME. LADIES AND GENTLEMEN, IT'S ALMOST 10:15. WE'LL BE IN
14 RECESS UNTIL 10:30. HOPEFULLY, IT WON'T BE ANY LONGER THAN
15 ~~THAT. I NEED TO TALK TO THE LAWYERS ABOUT CERTAIN THINGS. AND~~
16 IT DOESN'T CONCERN YOU AT THIS TIME, SO WE'LL TAKE THIS
17 OPPORTUNITY TO DO THAT.

18 PLEASE REMEMBER THE ADMONITION THAT I HAD PREVIOUSLY
19 GIVEN TO YOU. WE'LL RESUME AGAIN AT 10:30.

20 (JURY ABSENT.)

21 THE COURT: OKAY, COUNSEL. IS THERE ANYTHING? I
22 KNOW YOU WANTED TO TALK THIS MORNING ABOUT SOMETHING, BUT I
23 DON'T KNOW IF THAT'S STILL SOMETHING THAT YOU WANT TO GO OVER.

24 MS. MAJOR: VERY BRIEFLY. I JUST WANTED TO EXPLAIN TO
25 YOUR HONOR, WE HAD MENTIONED TO YOUR HONOR, WE HAD TALKED ABOUT

1 ENOUGH TIME TO DISCUSS IT. WE KNOW WHAT THE GOVERNMENT'S
2 POSITION IS. I'LL HEAR FROM YOU EITHER AT NOONTIME OR AFTER
3 THE END OF THE DAY. I DON'T KNOW IF IT HAS TO BE DECIDED RIGHT
4 NOW, BUT WE'LL CONTINUE TO TALK ABOUT IT, BUT WE ALL NEED A
5 BREAK AT THIS POINT. BUT I WILL MAKE A DECISION CERTAINLY BY
6 THE END OF THE DAY. DO YOU NEED TO KNOW BEFORE THEN?

7 MS. MAJOR: THAT'S THE REASON I TOLD YOU I'M TALKING
8 TO HER THIS EVENING.

9 THE COURT: OH, OKAY.

10 LET'S TRY TO TAKE A LITTLE BIT OF TIME. I HAVE A
11 MEETING AT 12:15, BUT MAYBE BEFORE THE JURY COMES BACK FOR
12 LUNCH WE CAN TALK ABOUT IT BEFORE, SO YOUR LUNCH BREAK MAY BE
13 CUT A LITTLE SHORT. OKAY.

14 MS. MAJOR: THANK YOU.

15 ~~(RECESS TAKEN.)~~

16 (JURY PRESENT.)

17 THE COURT: THANK YOU FOR WAITING, LADIES AND
18 GENTLEMEN. YOU MAY PROCEED.

19 BY MS. MAJOR:

20 Q. MR. FOTTRELL, WHO MANAGES OR WHO OWNS THE IRC CHANNELS?

21 A. NOBODY OWNS THE IRC. THERE'S NO CENTRAL GOVERNING
22 AUTHORITY. IT'S NOT CONTROLLED BY A GOVERNMENTAL AGENCY. IT'S
23 KIND OF A LOOSELY BASED NETWORK THAT IS INDEPENDENT.
24 TRADITIONALLY A LOT OF TIMES UNIVERSITIES AND SCHOOLS WILL SET
25 UP AN IRC SERVER AS A FEATURE FOR THEIR CLIENT, YOU KNOW, AS A